

113	Yu v. Universal Waste Systems, 2026-01548728	Motion for Leave to Amend – MOOT
114	Red Hill Village v. Shere, 2024-01424721	Motion for Attorney Fees – GRANTED After this Court granted Plaintiff Red Hill Village, LLC’s motion for summary judgment, judgment was entered in favor of Plaintiff and against Defendant Kaiser Shere. Based on the parties’ contract, Plaintiff now moves for an order granting attorney fees in the amount of \$35,349.50. The Court OVERRULES Defendant’s Evidentiary Objections Nos. 1, 2, 4-9, 11, 12. The Court SUSTAINS Objection Nos. 3 and 10 on the ground the “transaction listing report” attached as Exhibit 1 is hearsay. <u>Attorney Fees Provision</u> Plaintiff brings the instant motion for attorney fees under Civil Code section 1717, pursuant to an agreement by the parties. “ ‘Before section 1717 comes into play, it is necessary to determine whether the parties entered into an agreement for the payment of attorney fees, and if so, the scope of the attorney fee agreement.’ [Citation.]” (Mountain Air Enterprises, LLC v. Sundowner Tower, LLC (2017) 3 Cal.5th 744, 752.) Defendant argues that Plaintiff did not attach or authenticate the Lease or Guaranty containing the fee clause. However, the reply argues that the operative Lease and Guaranty were submitted previously and attached to the Declaration of Bonaparte Lui in conjunction with Plaintiff’s Motion for Summary Judgment, and requests that the Court take judicial notice of the documents filed on June 12, 2025. The Court takes judicial notice of the Declaration of Bonaparte Lui in conjunction with Plaintiff’s Motion for Summary Judgment, pursuant to Evidence Code section 452(d). (ROA 55.)